

M/s Natural Water Industries v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 September 2022 · Writ-C No. 24454 of 2022 · Writ-C No. 24454 of 2022 · **Writ disposed; relegated to Chapter-VI; EE to decide in two weeks.**

HEADNOTE

Chapter-VI of the Electricity Supply Code, 2005 is the forum for disputed bills and meter-malfunction complaints. A writ seeking mandamus to restore a disconnected commercial connection by deciding a pending representation was disposed of by directing the consumer to apply under that Chapter, with a two-week window for the application and a further two weeks for the Executive Engineer to pass orders.

FACTUAL SUMMARY

The petitioner, a small-scale MSME registered on 11 November 2016 for manufacture of refined drinking water, held a commercial connection. It complained on 11 July 2022 that the meter was malfunctioning. A bill of Rs 17,16,178 was then raised and supply was disconnected on 25 July 2022. A representation dated 2 August 2022 to the Executive Engineer, PuVVNL, Ghazipur, remained pending. The writ sought mandamus to restore the connection by deciding that representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Chapter-VI

disputed bills and meter malfunction — Chapter-VI forum

HOLDING

Disputed electricity bills and complaints of meter malfunction fall under Chapter-VI of the Electricity Supply Code, 2005. A consumer seeking restoration after disconnection on a disputed bill is to apply to the competent authority under that Chapter; if the application is made within two weeks, the Executive Engineer shall consider it and pass appropriate orders within a further two weeks. The writ was disposed of on that direction without a merits grant or refusal. ¶ 4

FLAG Court invoked Chapter-VI generally for disputed bills and meter malfunction without identifying a specific clause (e.g. 6.5 or 6.8).

PRINCIPLE TAGS

UP-2005::Chapter-VI The Division Bench treated Chapter-VI as the pathway for the consumer's disputed-bill and meter complaint and refused a restoration mandamus on a pending representation, directing a time-bound Chapter-VI application to the Executive Engineer instead. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RS 17,16,178 BILL, ALLEGED METER MALFUNCTION, LEGALITY OF THE 25 JULY 2022 DISCONNECTION, AND ENTITLEMENT TO RESTORATION

Writ disposed without examining the merits; consumer directed to apply under Chapter-VI. ¶ 4-5